Since Justice Sarkar held that the high court judges could have been asked to provide explanations to the assembly to ascertain if contempt had been committed, what if the judges were actually found in contempt by the assembly? Would they be entitled to immunity (under Article 211 or other constitutional provisions), or could they in fact be punished in some way? For Justice Sarkar to hold that the judges could also have been proceeded against for contempt would have been to push the envelope too far. Instead, he 'decided not to decide' this question in the hope that it would never arise: 'theoretical disputes should be allowed to lie buried in learned tracts and not be permitted to soil our daily lives.'[17]

Although their victory was not unanimous, it was clear that the high court judges and Solomon had trumped the assembly on all of the questions that were referred to the Supreme Court. Criticism of the Supreme Court's judgement streamed in soon after it was pronounced. Although this criticism took different forms, it largely boiled down to one question: did the judgement appropriately balance power between two co-equal constitutional institutions? First, the Supreme Court analysed the questions before it through a framework that left little room for a nuanced view.[18] It was possible, for example, for the Supreme Court to decide that it was beyond the authority of the high court to consider Keshav Singh's petition, but also that it was beyond the authority of the assembly to commit the judges for contempt for deciding that question. By framing this as a contest for custodianship of the Constitution, the Supreme Court left itself with little choice but to hold that the high court had the authority to decide the petition, if it wished to avoid the unsavoury outcome of high court judges being interrogated in the assembly.

The second reason for which the judgement was criticized was that the court refused to acknowledge any role for the assembly in interpreting the scope of its own privileges. This was prompted, to some extent, by the reference to the Supreme Court itself (rather than leaving the question to be decided by the assembly). However, it may not have been out of place for the court to say that it was for the assembly to interpret Article 194(3), which stated that the powers, privileges and immunities of state legislatures